

TENTATIVE RULING FOR September 11, 2026

Department S22 – Judge David Driscoll

This court follows California Rules of Court, rule 3.1308(b) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings for each law & motion will be posted on the internet (<https://www.sb-court.org>) by 3:00 p.m. on the court day immediately before the hearing.

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If you do not have Internet access or if you experience difficulty with the posted tentative ruling, you may obtain the tentative ruling by calling the department (S-22) at (909) 521-3529 or the Administrative Assistant (909) 708-8756, who prepared the ruling.

If you (or both parties) wish to submit on the Tentative, notify the other party and call the department by 4:00 pm the day before and your appearance may be excused unless the Court orders you to appear.

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UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

CIVSB2111089

JPC (HK) COMPANY LIMITED v. AFC TRIDENT, INC, ET AL

TENTATIVE RULING

This is a business-related litigation matter. On April 19, 2021, Plaintiff JPC (HK) Company Limited filed its Complaint against 11 defendants, including Defendants Hong Lip Yow and Fonegear LLC. The Complaint alleges four causes of action: (1) breach of contract, (2) fraud, (3) negligent misrepresentation, and (4) injustice enrichment (unjust enrichment).

Plaintiff alleges that Defendants entered into a contract with Plaintiff for the purchase of electronic goods. Payment was due on December 14, 2019, and despite a mutually agreed upon extension, payment in the amount of \$316,704.76 was never received.

On December 16, 2021, a dismissal was filed against nine defendants, except for Defendants Yow and Fonegear.

On August 31, 2021, the Court entered Defendants Yow and Fonegear defaults. On February 7, 2022, the Court entered default judgments of \$330,922.26 against both Defendants.

Defendants Yow and Fonegear now move to set aside their default and default judgment under Code of Civil Procedure section 473, subdivision (d), and to quash the service of the Summons and Complaint. They also request the Court recall and quash the writs of execution that this Court issued for Orange County, Los Angeles County, and Sacramento County, and quash an abstract of judgment this Court issued. After Defendants Yow and Fonegear filed a notice of non-opposition, the Court continued the

hearing to allow Plaintiff JPC to file opposition. On June 1, 2026, Plaintiff filed a joint opposition. Defendants Yow and Fonegear filed a joint reply.

Statement of the Law

Set Aside Code of Civil Procedure section 473, subdivision (d), provides that the Court may set aside a void judgment or order. A judgment/order is void if the court lacks subject matter or personal jurisdiction or grants relief that it lacks the power to grant. (*Becker v. S.P.V. Construction Co.* (1980) 27 Cal.3d 489, 493.) A void judgment may be set aside at any time. (*California Capital Insurance Company v. Hoehn* (2024) 17 Cal.5th 207, 212, 214, 226.)

A default or default judgment entered against a defendant who was not served with a summons in the manner prescribed by the statute is void and may be set aside as a matter of law. (*Dill v. Berquist Construction Co.* (1994) 24 Cal.App.4th 1426, 1444 (*Dill*).)

Section 417.10, subdivision (a), provides that proof that a summons was served on a person within this state shall be made: “If served under Section 415.10, 415.20, or 415.30, by the affidavit of the person making the service showing the time, place, and manner of service and facts showing that the service was made in accordance with this chapter. The affidavit shall recite or in other manner show the name of the person to whom a copy of the summons and of the complaint were delivered, and, if appropriate, the person’s title or the capacity in which the person is served, and that the notice required by Section 412.30 appeared on the copy of the summons served, if in fact it did appear.”

In general, the filing of a proof of service creates a rebuttable presumption that service was proper. But the presumption arises only if the proof of service complies with applicable statutory requirements. (*Dill, supra*, 24 Cal.App.4th at pp. 1441-1442.)

The effect of such a rebuttable presumption is “to require the trier of fact to assume the existence of the presumed fact unless and until evidence is introduced which would support a finding of its non-existence, in which case the trier of fact shall determine the existence or non-existence of the presumed fact from the evidence and without regard to the presumption.” (Evid. Code, § 604.)

“[I]n deciding whether service was valid, the statutory provisions regarding service of process should be liberally construed to effectuate service and uphold the jurisdiction of the court if actual notice has been received by the defendant.” (*Dill, supra*, 24 Cal.App.4th at p. 1437, citations omitted, cleaned up.)

Finally, there is a strong policy in favor of litigating a dispute on the merits and courts generally disfavor judgment by default.

Quash. The service of a summons is the process by which the court acquires jurisdiction over a defendant in a civil action. (*MJS Enterprises Inc. v. Superior Court (Serpa)* (1984) 153 Cal.App.3d 555, 557 (*MJS Enterprises*).) Without substantial compliance with the statutory requirements for service of summons, personal jurisdiction is not conferred, even if the defendant has notice of the litigation. (*Ruttenberg v. Ruttenberg* (1997) 53 Cal.App.4th 801, 808; *MJS Enterprises, supra*, 153 Cal.App.3d at p. 557.)

A defendant, on or before the last day to plead, may serve and file a notice of motion to quash service of summons on the ground that the court lacks jurisdiction. (§ 418.10, subd. (a)(1).) When challenging service by a motion to quash, a plaintiff bears the burden of proving by a preponderance of the evidence the validity of the service and the court’s jurisdiction over the defendant by proving the facts requisite to effective service. (*Summers v. McClanahan* (2006) 140 Cal.App.4th 403, 413.)

A quash motion may be made simultaneously with a set aside motion under sections 473 or 473.5 without constituting a general appearance. (§ 418.10, subd. (d).)

Service of Summons can occur essentially in four manners: (1) personal service (§ 415.10); (2) substituted service (§ 415.20); (3) by mail with copies of notices of acknowledgment (§ 415.30); and (4) by publication if the person cannot be served otherwise (§ 415.50).

Writ of Execution. A court can declare a void judgment void at any time. (*Plaza Hollister Ltd. v. City of San Benito* (1999) 72 Cal.App.4th 1, 21.) A writ of execution is improper when issued to enforce a void judgment and the writ of execution may be recalled if improvidently issued. (*Jones v. World Life Research Inst.* (1976) 60 Cal.App.3d 836, 840.)

Judicial Notice

With their reply, Defendants Yow and Fonegear request judicial notice of Court Orders in CIVSB2111090 and in CIVSB2110860, in which Yow's motions to quash service and set aside the default were granted.

First, new evidence submitted for the first time on reply is generally not considered unless the opposing party has the opportunity to respond or the evidence is responsive to arguments made for the first time in the opposition. (*Golden Door Properties, LLC v. Superior Court* (2020) 53 Cal.App.5th 733, 774, citations omitted.) Second, and more importantly, decisions and orders from other superior courts are not citable authority and are not binding precedent on this court. (*Santa Ana Hospital Med. Center v. Belshi* (1997) 56 Cal.App.4th 819, 831.)

Defendants' request for judicial notice is denied because it is irrelevant.

Analysis- Yow Motion

The Proof of Service of Summons filed on August 31, 2021, shows that Defendant Yow was personally served on May 27, 2021, at 10:00 a.m. at 14726 Ramona Ave., #203, Chino CA 91710. The process server was not a registered process server. The address where the service occurred is not in dispute, rather Defendant Yow seeks to quash the service and set aside the default/default judgment because he contends that he was never served.

Specifically, Yow claims that on May 27, 2021, he had gone to Adelanto City Hall with his architect and project manager to submit environmental reports and pay city fees. According to the screenshot from two photographs for the received receipt and submitted application, his phone lists its location in Adelanto at 11:10 a.m. The distance between the address in Chino where service purportedly took place and Adelanto City Hall is approximately 60 miles. Depending on traffic, Defendant Yow attests that it could take one to two hours of travel time. (Yow Dec. at ¶¶ 7 – 9, Exh. G; Buonya Dec. at ¶¶ 3-4, Exh. F.) Defendant Yow attests that he was not served on May 27, 2021, and he did not discover this litigation until early January 2024. (Yow Dec. at ¶¶ 3, 10.)

On the POS's face, service appears valid as all the necessary portions are filled out. Defendant Yow contends inconsistencies appear on the face of the POS because the process server has the same address as Plaintiff's counsel and may have worked for Plaintiff's counsel. But nothing about the process server and Plaintiff's counsel sharing the same address makes the face of the POS inconsistent. The issue is whether the declarations of Defendant Yow's and Joe Buonya are sufficient to overcome the presumption of proper service.

Arguably, it is possible to be served at 10:00 a.m. and be at the Adelanto City Hall at 11:10 a.m., especially considering traffic was lighter during the COVID pandemic. No evidence was offered of when Defendant Yow arrived in Adelanto, which would have definitively resolved this issue. The photographs only depict when payment was made to the City, not when the process began. Despite this, if completed by 11:10 am to take photographs, a reasonable conclusion is that Defendant Yow was present some time before that. This raises support for concluding that he was not in Chino at 10:00 am for service and still made it to Adelanto, 60 miles away, submitting paperwork and paying fees by 11:10 am. As such, Defendant Yow's evidence is sufficient to overcome the presumption and shifts the burden back to Plaintiff to demonstrate proper service.

In opposition, Plaintiff does not produce any evidence from the process server. Instead, Plaintiff takes issue with Yow's declaration where he states he discovered this "action and the Judgment [in] early 2024." Plaintiff produces an e-mail from attorney Michael Ciseneros who identified himself as the attorney for Defendant Yow as early as December 31, 2021. (Yow Dec. at ¶11; Silver Dec. ¶2 and Exh. 1.) While Yow does not address this issue on reply, even if this is correct that Yow knew of the lawsuit earlier, the issue is service on Yow in May 2021. Thus, Plaintiff presents insufficient evidence demonstrating proper service.

Therefore, the court intends to grant Defendant Yow's Motions to Set Aside his Default and Default Judgment and Quash the Service of Process.

Analysis- Fonegear

The Proof of Service of Summons filed on August 31, 2021, shows that Defendant Fonegear was personally served through its agent on May 27, 2021, at 10:00 a.m. at 14726 Ramona Ave., #203, Chino CA 91710. The agent listed in the POS is Hsiao Fen L Lu. However, Lu resigned as agent for service on behalf of Fonegear LLC on September 8, 2020. (Yow Decl., ¶ 8; Exh. B.) Therefore, whether Lu was served is irrelevant.

Plaintiff argues that under California Corporations Code section 17701.16, subdivision (c), if the designated agent is not found at the address designated, service can still be effectuated under Sections 415.10, 415.20, subdivision (a), or 415.30, subdivision (a).

Corporations Code section 17701.16(c) reads as follows:

If an agent for service of process has resigned and has not been replaced or if the designated agent cannot with reasonable diligence be found at the address designated for personal delivery of the process, and it is shown by affidavit to the satisfaction of the court that process against a limited liability company or foreign limited liability company cannot be served with reasonable diligence upon the designated agent by hand in the manner provided in Section 415.10, subdivision (a) of Section 415.20, or subdivision (a) of Section 415.30 of the Code of Civil Procedure, the court may make an order that the service shall be made upon a domestic limited liability company or upon a registered foreign limited liability company by delivering by hand to the Secretary of State, or to any person employed in the Secretary of State's office in the capacity of assistant or deputy, one copy of the process for each defendant to be served, together with a copy of the order authorizing the service. Service in this manner shall be deemed complete on the 10th day after delivery of the process to the Secretary of State.

Given that Fonegear's agent resigned and was not replaced at the time of service, Plaintiff's proper course of action was to file a motion in accordance with Corporations Code section 17701.16 seeking an order from the Court to allow service on Fonegear through the Secretary of State. This was not done. Instead,

Plaintiff served an individual who had resigned as Fonegear's agent for service of process more than six months earlier. This is not proper service.

Therefore, the court intends to grant Defendant Fonegear LLC's Motions to Set Aside its Default and Default Judgment and Quash the Service of Process.

Given the court's intention to grant both Defendants' motion based on the Default and Default Judgment being void, it follows that the Court will also recall and quash the Abstract of Judgment and the Writs of Execution issued against Defendants in Orange County, Los Angeles County and Sacramento County.

TENTATIVE RULING

1. The court grants Defendant Yow's Motion to Set Aside his Default (entered on August 31, 2021) and Default Judgment (entered on February 7, 2022), and Quash Service of Summons. The court Recalls and quashes the Abstract of Judgment (issued on September 16, 2024) and the Writs of Execution issued against him in Orange County, Los Angeles County and Sacramento County.

2. The court grants Defendant Fonegear LLC's Motion to Set Aside its Default (entered on August 31, 2021) and Default Judgment (entered on February 7, 2022), and Quash Service of Summons. The court Recalls and quashes the Abstract of Judgment (issued on September 16, 2024) and the Writs of Execution issued against it in Orange County, Los Angeles County and Sacramento County.

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CIVSB2609016

VARTOUIHIE GEOVSHANIAN v. SONIA GOULUMIAN

TENTATIVE RULING

On April 6, 2026, Plaintiff Vartouhie Geovshanian filed a complaint against Defendant Sonia Goulumian, alleging causes of action: (1) quiet title; (2) cancellation of deed; (3) fraud; (4) constructive trust; and (5) elder abuse arising from an October 2015 transfer of real property located at 7169 Petaluma Drive in Fontana. (Compl. ¶¶ 22-41.)

Defendant was served with the summons and complaint on May 19, 2026. On July 6, 2026, Plaintiff requested entry of default, and Defendant's default was entered that day. Approximately two weeks later, Defendant filed an ex parte application seeking relief from default on July 20, 2026. The Court denied the ex parte for Defendant to file a noticed motion.

Now before the Court is Defendant's motion to set aside the entry of default based on Defendant's mistake and surprise. Plaintiff opposes and Defendant replies. Although the parties at times refer to a "default judgment," the Register of Actions reflects only an entry of default, not entry of a default judgment.

Under the discretionary provision of Code of Civil Procedure section 473, subdivision (b), the Court may relieve a party or the party's legal representative from a judgment, dismissal, order, or other proceeding taken against the party through mistake, inadvertence, surprise, or excusable neglect. The application must be made within a reasonable time, not exceeding six months. To obtain discretionary relief based on mistake or neglect, the moving party must establish that the mistake or neglect was excusable—that is,

one a reasonably prudent person under similar circumstances might have made. (*Zamora v. Clayborn Contracting Group, Inc.* (2002) 28 Cal.4th 249, 258.) The moving party must also act diligently in seeking relief. (*Huh v. Wang* (2007) 158 Cal.App.4th 1406, 1420.)

Section 473 is liberally applied because the law favors determination of actions on their merits. Where a party in default acts promptly to seek relief, very slight evidence may justify setting aside the default, and doubts are resolved in favor of relief. (*Shamblin v. Brattain* (1988) 44 Cal.3d 474, 478–479.) An application for relief must also be accompanied by a copy of the answer or other pleading proposed to be filed. (Code Civ. Proc., § 473, subd. (b).)

Analysis

Defendant contends the default should be set aside because she timely attempted to respond by demurrer but, through mistake or surprise, the demurrer was not filed. She also argues that she has substantive defenses based on the statute of limitations and the scope of a 2009 Power of Attorney.

Plaintiff argues Defendant has not shown excusable neglect or diligence because the record does not establish that the demurrer and filing fees were timely submitted to the Court. Plaintiff also disputes Defendant's proposed defenses.

In reply, Defendant submits additional evidence concerning the attempted filing and raises, for the first time, a request for terminating sanctions and dismissal based on alleged litigation misconduct.

Defendant Has Shown Sufficient Grounds for Discretionary Relief

Defendant's contention that the default resulted from a clerical error by the Court is not adequately supported by the present record. Although Defendant states that her document preparer physically submitted the demurrer to the Court on June 17, 2026, there is no Court generated record confirming receipt of the demurrer for filing. Exhibit C is a transmittal letter from Defendant's document preparer and, standing alone, does not establish delivery to or receipt by the Court. (Goulumian Decl., Exh. C.)

Nevertheless, the evidence submitted with the moving papers demonstrates that Defendant undertook timely efforts to respond to the complaint. Defendant retained Elite Paralegal Service to prepare and file a demurrer, signed the demurrer on June 15, 2026, and obtained a September 9 hearing reservation on June 17, 2026. (Goulumian Decl. ¶¶ 2–5; Exh. A.) The motion also includes a proof of service executed under penalty of perjury stating that the demurrer was mailed to Plaintiff on June 17. (Goulumian Decl., Exh. B.) Although this evidence does not establish that the demurrer was filed, it supports a finding that Defendant intended to respond timely and that the resulting default arose from mistake or neglect in completing the filing process rather than an intentional failure to respond. Under these circumstances, Defendant's reliance on the document preparer to complete the filing process was not so unreasonable as to preclude discretionary relief.

Defendant also acted promptly after entry of default. Default was entered on July 6, 2026; Defendant sought ex parte relief on July 20, 2026, and filed the present noticed motion on August 12, 2026. In light of Defendant's pre-default efforts to respond and prompt application for relief, the showing is sufficient to warrant discretionary relief under section 473, subdivision (b).

In reply, Defendant submits additional facts concerning her efforts to monitor the status of the demurrer, including communications with Court personnel regarding an asserted administrative backlog and the September 9 hearing reservation. (Goulumian Reply Decl. ¶¶ 5–6.) Because those factual assertions

were presented for the first time in reply, the Court does not rely on them in determining whether Defendant has established grounds for relief.

Plaintiff has not shown that setting aside the default would result in substantial prejudice. Although default was entered on July 6, 2026, the parties thereafter litigated Plaintiff's request for preliminary injunctive relief, including Defendant's opposition, and the Court ultimately granted a preliminary injunction preserving the subject property. The preliminary injunction remains in place, and no default judgment has been entered. Under these circumstances, the policy favoring resolution on the merits weighs in favor of relief.

The Underlying Merits Need Not Be Resolved

Both parties argue the merits of Defendant's proposed defenses. Defendant contends Plaintiff's claims are time barred and that the 2009 Power of Attorney authorized the 2015 conveyance. Plaintiff disputes those contentions and relies on delayed discovery.

Section 473 expressly provides that no declaration of merits is required. (Code Civ. Proc., § 473, subd. (b).) Defendant attached the demurrer she proposes to file, thereby satisfying the statutory pleading requirement. The parties' competing arguments concern the merits of the action and need not be resolved.

Defendant's Request for Terminating Sanctions Is Denied

Defendant's noticed motion sought only relief from default. In reply, Defendant requests dismissal with prejudice as a terminating sanction based on alleged service misconduct, violation of an oral Court directive, and alteration or destruction of electronic evidence.

The request is not properly before the Court because it was raised for the first time in reply, and the underlying factual allegations are disputed. The request is therefore denied.

TENTATIVE RULING

Defendant Sonia Goulumian's motion to set aside the July 6, 2026 entry of default pursuant to Code of Civil Procedure section 473, subdivision (b), is granted. Defendant has demonstrated sufficient grounds for discretionary relief based on her timely efforts to respond to the complaint and prompt application for relief after entry of default.

Defendant's request for terminating sanctions and dismissal with prejudice, which was raised for the first time in reply, is denied.